

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **Call or text 988** — the Suicide & Crisis Lifeline (open 24/7)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

□ on april 6 i get an email saying no, lifting up to 50 pounds is an 'essential function,' and get this, they said the light duty program is ONLY for people who got hurt ON THE JOB. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-04-20
- **Basis:** Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.
- **Triggering event:** notice posted on 2026-04-06
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

□ they put me on unpaid leave that same day and said if i couldnt come back 'full duty' by late may i was done. — DEADLINE MAY HAVE PASSED

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□ the termination letter came. my supervisor derek had also been making comments for months like 'we need guys who can hustle, not broken down guys' and after i handed in the note he stopped giving me the good routes. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-05-22
- **Basis:** Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.
- **Triggering event:** hearing on 2026-05-22
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court

papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

△ Gideon is questioning if he has a deadline for filing something with the government about the discrimination. Did I already miss it, since the accommodation thing was back in April?

- **Estimated deadline:** 2027-01-31
- **Basis:** 42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock).
- **Triggering event:** served on 2026-04-06
- **Jurisdiction:** MN
- To sue for disability discrimination under federal law (the ADA), you usually must first file a charge with the EEOC within 300 days of the discriminatory act in Minnesota (42 U.S.C. § 2000e-5(e)(1); § 12117(a)). Each separate act — being denied an accommodation, being fired — starts its own 300-day clock, so the EARLIEST act controls for that claim. Note: since Oct. 1, 2025 the state (MDHR) and the EEOC no longer automatically cross-file, so protect BOTH by filing with each. Estimated — confirm the exact date with the court or a lawyer.

△ **last winter my disc problems got real bad, herniated disc L4-L5, i have the MRI, and in february my doctor put me on a restriction, no lifting over 35 pounds.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-02-01
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

△ **on june 30 HR emailed me a 'severance agreement,' 4 weeks pay, \$3,520, but i have to sign by JULY 21.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** deadline on 2026-07-21
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

Executive Summary

This intake surfaced 26 potential legal issues across state (Minnesota). The most strongly supported issues are Failure to Provide Reasonable Accommodation, Disability Discrimination, and FMLA Rights Violation. IMPORTANT: at least one deadline appears to have already passed — on april 6 i get an email saying no, lifting up to 50 pounds is an 'essential function,' and get this, they said the light duty program is ONLY for people who got hurt ON THE JOB. (computed 2026-04-20) [Minn. Stat. §

504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.]. Confirm this immediately, as missed deadlines can end a case. Safety concerns were detected in this narrative; see the safety resources below. Analysis completeness is 100%; 29 follow-up questions below would strengthen the assessment.

Completeness Score: 100%

Untitled Intake

Generated: 2026-07-11 21:29 UTC

Matter ID: 231

Run ID: 64

Completeness: 100%

General

| Failure to Provide Reasonable Accommodation

Claim Type: discovered | **Confidence:** 90%

FOLIO IRI: <https://folio.openlegalstandard.org/RGvDd1LWO2w0H7qGaNtEhX>

ISSUE

The ADA requires employers to engage in an interactive process to find reasonable accommodations for employees with disabilities.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Provide Reasonable Accommodation' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Was a formal process of interactive dialogue engaged in prior to termination, as required by the ADA?

CONCLUSION

No elements defined

| FMLA Rights Violation

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RmCCZU8GS7O8920pkDipw7>

ISSUE

FMLA entitles eligible employees to take leave for serious health conditions and mandates that companies inform employees of their rights, which seems not to have occurred.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Potential FMLA Violations

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/RDsDXHKUsZoJfz87jnz7zjj>

ISSUE

The lack of communication regarding FMLA suggests a failure to comply with mandated requirements, which may indicate additional claims for failure to provide necessary information.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Constructive Discharge

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/RsHKmukY8RoJdJO1gsTCxN>

ISSUE

The supervisor's comments and refusal to accommodate potentially create a hostile environment which could support a claim of constructive discharge.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Unlawful Termination

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/RCcidDCaGrSequSQ0hnokdb>

ISSUE

Termination following a request for accommodations that was not addressed could indicate discrimination or retaliation, particularly if he was performing satisfactorily prior.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| **Disability Insurance Claim Denial**

Claim Type: discovered | **Confidence:** 40%

ISSUE

Given his medical issues and the employer's refusal to accommodate, issues concerning how disability insurance was handled should be examined.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Disability Insurance Claim Denial' has not been explored with fact mappings

CONCLUSION

No elements defined

| **Failure to Investigate Workplace Complaints**

Claim Type: discovered | **Confidence:** 40%

ISSUE

If complaints about discrimination or inadequate response were not investigated, it exacerbates Gideon's claims of discrimination and harassment.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Investigate Workplace Complaints' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Retaliation for Requesting Accommodations:** 40% confidence
- **Severance Agreement Concerns:** 40% confidence
- **Wage and Hour Violations:** 40% confidence

state (Minnesota)

| Disability Discrimination

Claim Type: discovered | **Confidence:** 85%

FOLIO IRI: <https://folio.openlegalstandard.org/R8f088bmlfkWDbXdJj9nQD9>

ISSUE

Gideon was terminated after requesting an accommodation for his disability (herniated disc) and was denied the accommodation despite being provided medical documentation. Comments made by his supervisor suggest bias based on his condition.

RULE

No authorities identified for this claim.

APPLICATION

- **Unreasonable Accommodation:** Unsupported - The employer failed to provide reasonable accommodation for the employee's known disability.
- **Qualified Individual:** Supported (85% confidence) - The employee has a disability and is qualified for the job.
 - Fact: Gideon has disc problems that got real bad last winter. (85% match)
 - Fact: Gideon has a herniated disc L4-L5. (85% match)
 - Fact: Gideon's restriction is to not lift over 35 pounds. (81% match)
- **Adverse Employment Action:** Supported (85% confidence) - The employee suffered a negative job action (e.g., termination) due to discrimination based on their disability.
 - Fact: Gideon was fired because of his back. (85% match)

- Fact: If I couldn't come back full duty by late May, I was done. (79% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 85): Element 'Unreasonable Accommodation' is not yet supported by any facts
 - Element: Unreasonable Accommodation
- **Procedural Requirement** (Priority 50): What is the deadline for filing a discrimination claim under the Minnesota Human Rights Act or the ADA?

CONCLUSION

2 of 3 elements supported (57% confidence)

| Area of Law

Claim Type: discovered | **Confidence:** 40%

Related to: Disability Discrimination

ISSUE

Discovered via FOLIO ontology traversal from Disability Discrimination (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Area of Law' has not been explored with fact mappings

CONCLUSION

No elements defined

Failure to Accommodate

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/R7coJULMWSPoIPITP5qUS96>

ISSUE

Gideon requested a reasonable accommodation due to his medical condition, which was ignored for nearly a month, leading to his termination after being unable to return to work. This suggests a failure to accommodate his disability.

RULE

No authorities identified for this claim.

APPLICATION

- **Request for Accommodation:** Supported (85% confidence) - The employee formally requested an accommodation from the employer.
 - Fact: Gideon's doctor put him on a restriction in February. (85% match)
 - Fact: I asked HR if I could get moved to the scan station or use the lift assist for the heavy stuff. (85% match)
 - Fact: Most of Gideon's job is scanning and picking small bins. (85% match)

- **Denial of Accommodation:** Supported (85% confidence) - The employer did not provide the requested accommodation within a reasonable timeframe.
 - Fact: Tri-State Fulfillment is unable to grant the requested accommodation. (85% match)
 - Fact: HR sat on my request for almost a month. (83% match)
- **Legitimate Need for Accommodation:** Supported (85% confidence) - The employee has a disability that necessitates accommodation.
 - Fact: Gideon's restriction is to not lift over 35 pounds. (85% match)
 - Fact: The Picker I position requires the ability to lift up to 50 lbs on a regular basis. (81% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Was there proper documentation submitted to demonstrate the request for accommodation prior to the termination?

CONCLUSION

3 of 3 elements supported (85% confidence)

| Accessibility Claim

Claim Type: discovered | **Confidence:** 40%

Related to: Failure to Accommodate

FOLIO IRI: <https://folio.openlegalstandard.org/R9ROaRQTFgM9oWtVX4k6v6I>

ISSUE

Discovered via FOLIO ontology traversal from Failure to Accommodate (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Accessibility Claim' has not been explored with fact mappings

CONCLUSION

No elements defined

| Retaliation

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/R7irtksGAUxreU1oxQJBon8>

ISSUE

Gideon's termination and the negative comments from his supervisor reflect potential retaliation for his request for medical accommodation.

RULE

No authorities identified for this claim.

APPLICATION

- **Protected Activity:** Supported (85% confidence) - The employee engaged in a protected activity (requesting accommodation for a disability).
 - Fact: Gideon will be placed on an unpaid personal leave of absence effective April 6, 2026. (85% match)

- Fact: I asked HR if I could get moved to the scan station or use the lift assist for the heavy stuff. (85% match)
- **Adverse Employment Action:** Supported (85% confidence) - The employee suffered an adverse employment action (termination) after the protected activity.
 - Fact: The termination letter came on May 22. (85% match)
 - Fact: On April 6, I received an email saying no. (85% match)
 - Fact: Gideon was fired because of his back. (81% match)
- **Causal Connection:** Supported (85% confidence) - There is a causal connection between the protected activity and the adverse employment action.
 - Fact: The Picker I position requires the ability to lift up to 50 lbs on a regular basis. (85% match)
 - Fact: Derek stopped giving me the good routes after I handed in the note. (85% match)
 - Fact: Nobody gave me any paperwork when they put me on leave. (79% match)

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): How long after the request for accommodation was the termination, and does this fall within any relevant retaliation timelines?

CONCLUSION

3 of 3 elements supported (85% confidence)

Violation of MN Human Rights Act

Claim Type: discovered | **Confidence:** 70%

FOLIO IRI: <https://folio.openlegalstandard.org/R0TZk2qCI4HPwDl3e9FoOo>

ISSUE

The facts suggest that Gideon may have a claim under the Minnesota Human Rights Act for discrimination based on disability, given that he may not have properly received information about his rights and options to file, particularly concerning the release of claims.

RULE

No authorities identified for this claim.

APPLICATION

- **Protected Class:** Unsupported - The employee belongs to a protected class under the MN Human Rights Act (disability).
- **Discriminatory Practice:** Unsupported - The employer has engaged in discriminatory practices based on the employee's disability.
- **Timely Action:** Unsupported - The employee must take timely action to file a complaint within the designated time frame.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Violation of MN Human Rights Act' has not been explored with fact mappings
- **Unsupported Element** (Priority 70): Element 'Protected Class' is not yet supported by any facts
 - Element: Protected Class
- **Unsupported Element** (Priority 70): Element 'Discriminatory Practice' is not yet supported by any facts
 - Element: Discriminatory Practice
- **Unsupported Element** (Priority 70): Element 'Timely Action' is not yet supported by any facts
 - Element: Timely Action

- **Procedural Requirement** (Priority 50): Did Gideon receive the required information about his rights and how to file a complaint under the Minnesota Human Rights Act?

CONCLUSION

0 of 3 elements supported (0% confidence)

| Civil Rights

Claim Type: discovered | **Confidence:** 40%

Related to: Violation of MN Human Rights Act

FOLIO IRI: <https://folio.openlegalstandard.org/RBJlYzE4ZY14dTEghzbbMHg>

ISSUE

Discovered via FOLIO ontology traversal from Violation of MN Human Rights Act (depth 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Rights' has not been explored with fact mappings

CONCLUSION

No elements defined

More possible issues (show more)

- **Disability and Medical Condition Discrimination:** 40% confidence (related to Failure to Accommodate)
- **Freedom of Association:** 40% confidence (related to Violation of MN Human Rights Act)
- **Freedom to Petition:** 40% confidence (related to Violation of MN Human Rights Act)
- **Labor and Employment Law:** 40% confidence (related to Disability Discrimination)
- **Political Rights:** 40% confidence (related to Violation of MN Human Rights Act)
- **Retaliatory Constructive Discharge:** 40% confidence (related to Retaliation)
- **Retaliatory Discharge:** 40% confidence (related to Retaliation)
- **Retaliatory Discrimination:** 40% confidence (related to Retaliation)
- **Retaliatory Termination:** 40% confidence (related to Retaliation)
- **Voting Rights:** 40% confidence (related to Violation of MN Human Rights Act)
- **Wage and Hour Claims:** 40% confidence (related to Failure to Accommodate)
- **Whistleblower Retaliation:** 40% confidence (related to Retaliation)

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Unreasonable Accommodation' is not yet supported by any facts
 - **Claim:** Disability Discrimination

- **Element:** Unreasonable Accommodation
- [] **[IMPORTANT]** Element 'Protected Class' is not yet supported by any facts
 - **Claim:** Violation of MN Human Rights Act
 - **Element:** Protected Class
- [] **[IMPORTANT]** Element 'Discriminatory Practice' is not yet supported by any facts
 - **Claim:** Violation of MN Human Rights Act
 - **Element:** Discriminatory Practice
- [] **[IMPORTANT]** Element 'Timely Action' is not yet supported by any facts
 - **Claim:** Violation of MN Human Rights Act
 - **Element:** Timely Action

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: on april 6 i get an email saying no, lifting up to 50 pounds is an 'essential function,' and get this, they said the light duty program is ONLY for people who got hurt ON THE JOB. (estimated 2026-04-20; Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case,

Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

◦ **Deadline:** 2026-04-20

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: they put me on unpaid leave that same day and said if i couldnt come back 'full duty' by late may i was done. (estimated 2026-04-20; Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

◦ **Deadline:** 2026-04-20

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: the termination letter came. my supervisor derek had also been making comments for months like 'we need guys who can hustle, not broken down guys' and after i handed in the note he stopped giving me the good routes. (estimated 2026-05-22; Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If

this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

- **Deadline:** 2026-05-22

- [] **[URGENT]** Confirm the deadline for: Gideon is questioning if he has a deadline for filing something with the government about the discrimination. Did I already miss it, since the accommodation thing was back in April? (estimated 2027-01-31; 42 U.S.C. § 2000e-5(e)(1), applied to ADA claims via 42 U.S.C. § 12117(a) (in a deferral state such as Minnesota, an EEOC charge must be filed within 300 days of the discriminatory act; each discrete act — a denial of accommodation, a discharge — has its own clock)). To sue for disability discrimination under federal law (the ADA), you usually must first file a charge with the EEOC within 300 days of the discriminatory act in Minnesota (42 U.S.C. § 2000e-5(e)(1); § 12117(a)). Each separate act — being denied an accommodation, being fired — starts its own 300-day clock, so the EARLIEST act controls for that claim. Note: since Oct. 1, 2025 the state (MDHR) and the EEOC no longer automatically cross-file, so protect BOTH by filing with each. Estimated — confirm the exact date with the court or a lawyer.

- **Deadline:** 2027-01-31

- [] **[URGENT]** Separate from being fired, the law required your employer to seriously discuss a 'reasonable accommodation' with you (like the scan station or lift-assist) and not just say no (42 U.S.C. § 12112(b)(5); Minn. Stat. § 363A.08). Skipping that back-and-forth (the 'interactive process') can be its own violation, with its own deadline. Did anyone ever actually discuss other job options with you before denying it? [Authority: 42 U.S.C. § 12112(b)(5) (ADA failure to accommodate / interactive process); Minn. Stat. § 363A.08 (MHRA disability accommodation)]

- [] **[URGENT]** You asked your boss about overtime and were fired the same day. Firing or punishing a worker for asking about unpaid wages or overtime is illegal retaliation in Minnesota (Minn. Stat. § 181.03, subd. 6; § 177.32). The timing matters a lot here. Do you have the texts or messages showing you asked about overtime right before you were fired? [Authority: Minn. Stat. § 181.03, subd. 6 (retaliation for asserting wage rights); Minn. Stat. § 177.32 (MFLSA anti-retaliation)]
- [] **[URGENT]** The severance agreement asks you to release ALL claims — including the discrimination and accommodation claims — for the payment. Do NOT sign it without legal advice first, and note the sign-by date is a CONTRACT deadline set by the employer, not a legal filing deadline. If you do sign, Minnesota law gives you 15 days afterward to cancel the release of your state human-rights claims (Minn. Stat. § 363A.31). Would you like this reviewed before the sign-by date? [Authority: Minn. Stat. § 363A.31 (15-day rescission right after signing a release of MHRA claims); a severance release generally waives ADA/MHRA/FMLA claims]
- [] **[URGENT]** You said you worked 50+ hour weeks but were paid straight time. In Minnesota you are generally owed time-and-a-half for hours over 48 in a week (Minn. Stat. § 177.25), and federal law may require it over 40 (29 U.S.C. § 207). Unpaid overtime can be a big part of what you are owed. Do you have a record of your weekly hours? [Authority: Minn. Stat. § 177.25 (MFLSA overtime: time-and-a-half over 48 hrs/week); 29 U.S.C. § 207 (FLSA over 40 hrs/week if covered)]
- [] **[URGENT]** You mentioned holding back rent because the landlord is ignoring repairs. Withholding on your own can be used against you in an eviction — but there is a legal way to do it: in Minnesota you can deposit the rent with the court (rent escrow, Minn. Stat. § 504B.385) and ask the court to order repairs; other states have an equivalent. Have you asked the court about depositing your rent instead of just holding it back? [Authority:

Minn. Stat. § 504B.385 (rent escrow); § 504B.425 (remedies); § 504B.161 (covenants of habitability)]

- [] **[URGENT]** You were put on unpaid medical leave but say no one mentioned FMLA or gave you any FMLA paperwork. For an eligible employee at a large employer, failing to offer and designate FMLA leave can be unlawful 'interference' (29 U.S.C. § 2615). Eligibility depends on hours worked and employer size. About how many hours did you work in the year before the leave, and how big is the site? [Authority: 29 U.S.C. § 2615; 29 C.F.R. § 825.300 (FMLA interference — failure to designate/notify FMLA leave for an eligible employee)]
- [] **[IMPORTANT]** Potential claim 'Violation of MN Human Rights Act' has not been explored with fact mappings
 - **Claim:** Violation of MN Human Rights Act
- [] **[IMPORTANT]** Potential claim 'Labor and Employment Law' has not been explored with fact mappings
 - **Claim:** Labor and Employment Law
- [] **[IMPORTANT]** Potential claim 'Area of Law' has not been explored with fact mappings
 - **Claim:** Area of Law
- [] **[IMPORTANT]** Potential claim 'Failure to Provide Reasonable Accommodation' has not been explored with fact mappings
 - **Claim:** Failure to Provide Reasonable Accommodation
- [] **[IMPORTANT]** Potential claim 'Accessibility Claim' has not been explored with fact mappings
 - **Claim:** Accessibility Claim
- [] **[IMPORTANT]** Potential claim 'Wage and Hour Claims' has not been explored with fact mappings
 - **Claim:** Wage and Hour Claims

- [] **[IMPORTANT]** Potential claim 'Disability and Medical Condition Discrimination' has not been explored with fact mappings
 - **Claim:** Disability and Medical Condition Discrimination
- [] **[IMPORTANT]** Potential claim 'Retaliatory Constructive Discharge' has not been explored with fact mappings
 - **Claim:** Retaliatory Constructive Discharge
- [] **[IMPORTANT]** Potential claim 'Whistleblower Retaliation' has not been explored with fact mappings
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 - **Claim:** Retaliatory Termination
- [] **[IMPORTANT]** Potential claim 'Political Rights' has not been explored with fact mappings
 - **Claim:** Political Rights
- [] **[IMPORTANT]** Potential claim 'Freedom of Association' has not been explored with fact mappings
 - **Claim:** Freedom of Association
- [] **[IMPORTANT]** Potential claim 'Voting Rights' has not been explored with fact mappings
 - **Claim:** Voting Rights
- [] **[IMPORTANT]** Potential claim 'Freedom to Petition' has not been explored with fact mappings
 - **Claim:** Freedom to Petition

- [] **[IMPORTANT]** Potential claim 'Civil Rights' has not been explored with fact mappings
 - **Claim:** Civil Rights
- [] **[IMPORTANT]** Potential claim 'Disability Insurance Claim Denial' has not been explored with fact mappings
 - **Claim:** Disability Insurance Claim Denial
- [] **[IMPORTANT]** Potential claim 'Wage and Hour Violations' has not been explored with fact mappings
 - **Claim:** Wage and Hour Violations
- [] **[IMPORTANT]** Potential claim 'Retaliation for Requesting Accommodations' has not been explored with fact mappings
 - **Claim:** Retaliation for Requesting Accommodations
- [] **[IMPORTANT]** Potential claim 'Failure to Investigate Workplace Complaints' has not been explored with fact mappings
 - **Claim:** Failure to Investigate Workplace Complaints
- [] **[IMPORTANT]** What is the deadline for filing a discrimination claim under the Minnesota Human Rights Act or the ADA?
 - **Claim:** Disability Discrimination
- [] **[IMPORTANT]** Was there proper documentation submitted to demonstrate the request for accommodation prior to the termination?
 - **Claim:** Failure to Accommodate
- [] **[IMPORTANT]** How long after the request for accommodation was the termination, and does this fall within any relevant retaliation timelines?
 - **Claim:** Retaliation

- [] **[IMPORTANT]** Did Gideon receive the required information about his rights and how to file a complaint under the Minnesota Human Rights Act?
 - **Claim:** Violation of MN Human Rights Act
- [] **[IMPORTANT]** Was a formal process of interactive dialogue engaged in prior to termination, as required by the ADA?
 - **Claim:** Failure to Provide Reasonable Accommodation
- [] **[IMPORTANT]** What are the relevant deadlines for filing a wage and hour claim in relation to Gideon's termination?
 - **Claim:** Wage and Hour Claims

Gap Report Appendix

Overall Completeness: 100%

[=====] 100%

| Accessibility Claim

- **Unexplored Claim** (Priority 50): Potential claim 'Accessibility Claim' has not been explored with fact mappings
 - See Action Item #19

| Area of Law

- **Unexplored Claim** (Priority 50): Potential claim 'Area of Law' has not been explored with fact mappings
 - See Action Item #17

Civil Rights

- **Unexplored Claim** (Priority 50): Potential claim 'Civil Rights' has not been explored with fact mappings
 - See Action Item #30

Disability Discrimination

- **Unsupported Element** (Priority 85): Element 'Unreasonable Accommodation' is not yet supported by any facts
 - Element: Unreasonable Accommodation
 - See Action Item #1
- **Procedural Requirement** (Priority 50): What is the deadline for filing a discrimination claim under the Minnesota Human Rights Act or the ADA?
 - See Action Item #35

Disability Insurance Claim Denial

- **Unexplored Claim** (Priority 50): Potential claim 'Disability Insurance Claim Denial' has not been explored with fact mappings
 - See Action Item #31

Disability and Medical Condition Discrimination

- **Unexplored Claim** (Priority 50): Potential claim 'Disability and Medical Condition Discrimination' has not been explored with fact mappings
 - See Action Item #21

Failure to Accommodate

- **Procedural Requirement** (Priority 50): Was there proper documentation submitted to demonstrate the request for accommodation prior to the termination?
 - See Action Item #36

Failure to Investigate Workplace Complaints

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Investigate Workplace Complaints' has not been explored with fact mappings
 - See Action Item #34

Failure to Provide Reasonable Accommodation

- **Unexplored Claim** (Priority 50): Potential claim 'Failure to Provide Reasonable Accommodation' has not been explored with fact mappings
 - See Action Item #18
- **Procedural Requirement** (Priority 50): Was a formal process of interactive dialogue engaged in prior to termination, as required by the ADA?
 - See Action Item #39

Freedom of Association

- **Unexplored Claim** (Priority 50): Potential claim 'Freedom of Association' has not been explored with fact mappings
 - See Action Item #27

Freedom to Petition

- **Unexplored Claim** (Priority 50): Potential claim 'Freedom to Petition' has not been explored with fact mappings
 - See Action Item #29

Labor and Employment Law

- **Unexplored Claim** (Priority 50): Potential claim 'Labor and Employment Law' has not been explored with fact mappings
 - See Action Item #16

Political Rights

- **Unexplored Claim** (Priority 50): Potential claim 'Political Rights' has not been explored with fact mappings
 - See Action Item #26

Retaliation

- **Procedural Requirement** (Priority 50): How long after the request for accommodation was the termination, and does this fall within any relevant retaliation timelines?
 - See Action Item #37

Retaliation for Requesting Accommodations

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Requesting Accommodations' has not been explored with fact mappings
 - See Action Item #33

Retaliatory Constructive Discharge

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Constructive Discharge' has not been explored with fact mappings
 - See Action Item #22

Retaliatory Discrimination

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Discrimination' has not been explored with fact mappings
 - See Action Item #24

Retaliatory Termination

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliatory Termination' has not been explored with fact mappings
 - See Action Item #25

Uncategorized

- **Procedural Requirement** (Priority 84): You mentioned holding back rent because the landlord is ignoring repairs. Withholding on your own can be used against you in an eviction — but there is a legal way to do it: in Minnesota you can deposit the rent with the court (rent escrow, Minn. Stat. § 504B.385) and ask the court to order repairs; other states have an equivalent. Have you asked the court about depositing your rent instead of just holding it back? [Authority: Minn. Stat. § 504B.385 (rent escrow); § 504B.425 (remedies); § 504B.161 (covenants of habitability)]
 - See Action Item #10
- **Procedural Requirement** (Priority 86): You said you worked 50+ hour weeks but were paid straight time. In Minnesota you are generally owed time-and-a-half for hours over 48 in a week (Minn. Stat. § 177.25), and federal law may require it over 40 (29 U.S.C. § 207). Unpaid overtime can be a big part of what you are owed. Do

you have a record of your weekly hours? [Authority: Minn. Stat. § 177.25 (MFLSA overtime: time-and-a-half over 48 hrs/week); 29 U.S.C. § 207 (FLSA over 40 hrs/week if covered)]

◦ See Action Item #9

- **Procedural Requirement** (Priority 88): You asked your boss about overtime and were fired the same day. Firing or punishing a worker for asking about unpaid wages or overtime is illegal retaliation in Minnesota (Minn. Stat. § 181.03, subd. 6; § 177.32). The timing matters a lot here. Do you have the texts or messages showing you asked about overtime right before you were fired? [Authority: Minn. Stat. § 181.03, subd. 6 (retaliation for asserting wage rights); Minn. Stat. § 177.32 (MFLSA anti-retaliation)]

◦ See Action Item #7

- **Procedural Requirement** (Priority 90): Separate from being fired, the law required your employer to seriously discuss a 'reasonable accommodation' with you (like the scan station or lift-assist) and not just say no (42 U.S.C. § 12112(b)(5); Minn. Stat. § 363A.08). Skipping that back-and-forth (the 'interactive process') can be its own violation, with its own deadline. Did anyone ever actually discuss other job options with you before denying it? [Authority: 42 U.S.C. § 12112(b)(5) (ADA failure to accommodate / interactive process); Minn. Stat. § 363A.08 (MHRA disability accommodation)]

◦ See Action Item #6

- **Procedural Requirement** (Priority 88): The severance agreement asks you to release ALL claims — including the discrimination and accommodation claims — for the payment. Do NOT sign it without legal advice first, and note the sign-by date is a CONTRACT deadline set by the employer, not a legal filing deadline. If you do sign, Minnesota law gives you 15 days afterward to cancel the release of your state human-rights claims (Minn. Stat. § 363A.31). Would you like this reviewed before the sign-by date? [Authority: Minn. Stat. § 363A.31 (15-day rescission

right after signing a release of MHRA claims); a severance release generally waives ADA/MHRA/FMLA claims]

- See Action Item #8

- **Procedural Requirement** (Priority 84): You were put on unpaid medical leave but say no one mentioned FMLA or gave you any FMLA paperwork. For an eligible employee at a large employer, failing to offer and designate FMLA leave can be unlawful 'interference' (29 U.S.C. § 2615). Eligibility depends on hours worked and employer size. About how many hours did you work in the year before the leave, and how big is the site? [Authority: 29 U.S.C. § 2615; 29 C.F.R. § 825.300 (FMLA interference — failure to designate/notify FMLA leave for an eligible employee)]

- See Action Item #11

Violation of MN Human Rights Act

- **Unexplored Claim** (Priority 50): Potential claim 'Violation of MN Human Rights Act' has not been explored with fact mappings
 - See Action Item #15
- **Unsupported Element** (Priority 70): Element 'Protected Class' is not yet supported by any facts
 - Element: Protected Class
 - See Action Item #12
- **Unsupported Element** (Priority 70): Element 'Discriminatory Practice' is not yet supported by any facts
 - Element: Discriminatory Practice
 - See Action Item #13
- **Unsupported Element** (Priority 70): Element 'Timely Action' is not yet supported by any facts
 - Element: Timely Action
 - See Action Item #14

- **Procedural Requirement** (Priority 50): Did Gideon receive the required information about his rights and how to file a complaint under the Minnesota Human Rights Act?
 - See Action Item #38

Voting Rights

- **Unexplored Claim** (Priority 50): Potential claim 'Voting Rights' has not been explored with fact mappings
 - See Action Item #28

Wage and Hour Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Wage and Hour Claims' has not been explored with fact mappings
 - See Action Item #20
- **Procedural Requirement** (Priority 50): What are the relevant deadlines for filing a wage and hour claim in relation to Gideon's termination?
 - See Action Item #40

Wage and Hour Violations

- **Unexplored Claim** (Priority 50): Potential claim 'Wage and Hour Violations' has not been explored with fact mappings
 - See Action Item #32

Whistleblower Retaliation

- **Unexplored Claim** (Priority 50): Potential claim 'Whistleblower Retaliation' has not been explored with fact mappings
 - See Action Item #23

Open Questions

1. Did anyone talk to you about different job options, like the scan station or lift-assist, before denying them?
2. Can you explain your medical condition and how it affects your ability to perform your job?
3. What specific adjustments or changes did you request to help you perform your job?
4. Do you have any messages or texts that show you asked about overtime just before you were fired?
5. What day did you ask about overtime, and do you remember what your boss said?
6. Have you reviewed the severance agreement, and do you need help understanding its terms?
7. What is the deadline for signing the severance agreement?
8. Can you provide information about your weekly work hours and how you tracked them?
9. Have you spoken to the court about depositing your rent for repairs instead of withholding it?
10. When did the incidents of discrimination or accommodation issues occur?
11. Did anyone ever actually discuss other job options with you before denying it?
12. Do you have the texts or messages showing you asked about overtime right before you were fired?
13. Would you like this severance agreement reviewed before the sign-by date?
14. Do you have a record of your weekly hours?
15. About how many hours did you work in the year before your medical leave, and how big is the employer?
16. Have you asked the court about depositing your rent instead of just holding it back?

17. Can you tell us more about any specific situations or instances that you believe might demonstrate discrimination or retaliation?
18. Did your employer talk to you about any other possible job options or adjustments before saying no to your request for a change?
19. Have you spoken to anyone about your need for a reasonable adjustment at work before you were let go?
20. Were you given any paperwork or information about your rights regarding medical leave when you went on unpaid leave?
21. Do you have any documentation showing that the adjustments you requested were necessary for your role?
22. What types of adjustments did you request from your employer to assist you in your job?
23. Can you share copies of any texts or messages showing that you asked about overtime before your termination?
24. Can you tell me about how many hours you worked each week on average before you were let go?
25. Were you ever told you wouldn't receive overtime pay for the hours you worked over 40 in a week?
26. Have you received a severance agreement that you need to sign, and do you know the deadline for that?
27. Would you like to go over the severance agreement with someone before you decide to sign it?
28. Did you know there's a legal way to handle repairs by depositing your rent with the court instead of withholding it?
29. Have you communicated your repair issues to your landlord in writing?